

Sarasth Propbuild Pvt. Ltd. v. Executive Engineer Electricity Urban Distribution And 4 Others

Allahabad High Court · Division Bench · 16 July 2021 · Writ - C No. 8462 of 2021 · **Writ petition disposed of; petitioner to withdraw Original Suit No. 696 of 2019 within one week and file a Clause 6.5 application with Clause 6.5(b)(ii) pre-deposit; respondent no. 2 to decide within two weeks after hearing; disputed demand in abeyance for six weeks or until that decision, whichever is earlier**

HEADNOTE

Where a consumer seeks certiorari to quash a demand notice, a recovery citation and an auction notice on a disputed electricity bill, and the distribution licensee objects that a civil suit for similar relief is pending, the High Court will not decide the bill on merits if the petitioner undertakes to withdraw the suit. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an adequate remedy before respondent no. 2. The petition is disposed of with directions to withdraw the suit, for the licensee to communicate the Clause 6.5(b)(ii) pre-deposit, for a fresh Clause 6.5 application with proof of withdrawal and pre-deposit, for a time-bound hearing and order, and with a short stay of the disputed demand.

FACTUAL SUMMARY

Sarasth Propbuild Pvt. Ltd. filed Writ-C No. 8462 of 2021 against the Executive Engineer, Electricity Urban Distribution, and four others, seeking certiorari to quash a demand notice dated 26.06.2019 issued by respondent no. 1, a recovery citation dated 31.12.2019 for Rs. 2,47,75,915 issued by respondent no. 5, and an auction notice dated 13.01.2021 issued by respondent no. 4.

The licensee raised a preliminary objection that Original Suit No. 696 of 2019, seeking similar relief, was pending before the Civil Judge, Senior Division (Fast Track Court), Ghaziabad. Counsel for the petitioner stated that the suit would be withdrawn within a week. On merits the petitioner was disputing the correctness of the corporation's electricity bill. After adjournments on 25.3.2021, 19.4.2021 and 14.6.2021, a Division Bench disposed of the writ on 16.7.2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — Clause 6.5 as alternate remedy to writ

QUESTION

Where a writ challenges a demand, recovery citation and auction notice on a disputed electricity bill, and a civil suit for similar relief is pending, will the Court decide the bill or relegate the petitioner to Clause 6.5?

HOLDING

The petitioner was disputing the correctness of the bill issued by the respondent-corporation, for which there is an adequate remedy to approach respondent no. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005. On the petitioner's statement that Original Suit No. 696 of 2019 would be withdrawn within a week, the Court waived the licensee's maintainability objection and disposed of the writ without deciding the bill. The petitioner shall apply to withdraw the suit within one week; within the same period the corporation shall communicate the Clause 6.5(b)(ii) pre-deposit; the petitioner shall then have two weeks to file a fresh Clause 6.5 application with a certified copy of the withdrawal application and proof of pre-deposit; and respondent no. 2 shall pass an appropriate order within two weeks after hearing. The disputed demand remains in abeyance for six weeks or until disposal of that application, whichever is earlier. ¶ 6-9

QUALIFIER

The demand notice, recovery citation and auction notice were not quashed. The civil-suit objection was waived only on the undertaking to withdraw, not decided as a bar.

FLAG Source PDF concatenates four sittings: 25.3.2021 (Sunita Agarwal and Sadhna Rani (Thakur), JJ.) adjournment; 19.4.2021 (Sanjay Yadav, ACJ and Prakash Padia, J.) list after four weeks as fresh, counsel not responding; 14.6.2021 (Sanjay Yadav, CJ and Prakash Padia, J.) list after four weeks, counsel out of station; 16.7.2021 (Naheed Ara Moonis and Saumitra Dayal Singh, JJ.) merits disposal. Coram is the 16.7.2021 Bench. That order is unnumbered; paras 1–9 are sequential blocks (heard; reliefs quoted; OS 696 of 2019 objection; withdrawal statement; waiver; Clause 6.5 on merits; 6.5(b)(ii) pre-deposit; directions 1–4; six-week abeyance). The Court cited Clauses 6.5 and 6.5(b)(ii) only and did not name respondent no. 2. No precedent cited.

HOLDING-UNIT · UP-2005::6.5(b)(ii)

pre-deposit to maintain a Clause 6.5 application

HOLDING

Counsel for the petitioner stated that the petitioner will deposit the amount computed by the respondent-corporation under Clause 6.5(b)(ii). The corporation shall, within one week, communicate the exact pre-deposit required under that clause. The petitioner then has two weeks to file a fresh Clause 6.5 application with proof of that pre-deposit (and a certified copy of the application seeking withdrawal of the civil suit).

¶ 7-8

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ to quash the 26.06.2019 demand, 31.12.2019 recovery citation and 13.01.2021 auction notice was not decided on merits; the consumer was remitted to Clause 6.5. ¶ 6-8

clause-6.5-statutory-remedy-disputed-bill The Court treated Clause 6.5 as an adequate statutory remedy for the petitioner's dispute as to the correctness of the corporation's bill, to be decided by respondent no. 2 after hearing. ¶ 6

bill-correction-clause-6.5 Challenge to the demand, recovery citation and auction notice was left to a fresh Clause 6.5 application, not to writ correction of the bill. ¶ 6-8

disputed-assessment-relegated-to-6.5(b)(ii) Maintenance of the Clause 6.5 application was conditioned on the corporation communicating, and the petitioner depositing, the pre-deposit computed under Clause 6.5(b)(ii). ¶ 7-8

6.5-representation-as-appropriate-remedy The petitioner was directed to file a fresh Clause 6.5 application (with suit-withdrawal papers and proof of pre-deposit) within two weeks after the corporation communicates the deposit; respondent no. 2 is then to decide within two weeks after hearing, with the demand in abeyance for six weeks or until that decision. ¶ 8-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE DEMAND NOTICE DATED 26.06.2019, THE RECOVERY CITATION DATED 31.12.2019 FOR RS. 2,47,75,915, AND THE AUCTION NOTICE DATED 13.01.2021

Left to respondent no. 2 under Clause 6.5 after the prescribed pre-deposit; none of the three instruments was quashed.

¶ 6-9

NOT DECIDED — WHETHER ORIGINAL SUIT NO. 696 OF 2019 PENDING BEFORE THE CIVIL JUDGE, SENIOR DIVISION (FAST TRACK COURT), GHAZIABAD, BARRED THE WRIT

Raised as a preliminary objection; waived on the petitioner's statement that the suit would be withdrawn within a week, and not decided as a bar. ¶ 3-5, 8

NOT DECIDED — EXACT AMOUNT OF THE CLAUSE 6.5(B)(II) PRE-DEPOSIT

Left to the respondent-corporation to communicate within one week. ¶ 7-8